

STATE OF MICHIGAN  
IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON  
FAMILY DIVISION

**Case No. 2024-001507-DC**  
Hon. Jenny L. McNeill

ANDREW JAMES PIGORS,  
Plaintiff/Father,

v.

EMILY A. WATSON,  
Defendant/Mother.

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**FAMILY DIVISION**

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ANDREW J. PIGORS,

EMILY A. WATSON,

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**Hon. Jenny L. McNeill**

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**EMERGENCY MOTION TO RESTORE PARENTING TIME AND FOR  
MAKEUP PARENTING TIME**

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## **I. STATEMENT OF EMERGENCY**

2. L.D.W. is at a critical developmental stage (age 3) where prolonged separation from a parent causes documented, lasting psychological harm. Every additional day of separation deepens the injury to the parent-child bond and compounds the harm to this child.

3. The deprivation of all parenting time was initiated by an ex parte order entered on or about August 8, 2025, without the factual findings of immediate and irreparable harm required by MCR 3.207(B). No emergency existed that justified total cessation of the father-child relationship.

4. The urgency is further compounded by the following:

&nbsp;&nbsp;&nbsp;&nbsp;&nbsp;a. L.D.W. has now missed **two birthdays** (his 2nd and 3rd) without contact with his father;

&nbsp;&nbsp;&nbsp;&nbsp;&nbsp;b. L.D.W. has missed every holiday since August 2025 without contact with his father;

&nbsp;&nbsp;&nbsp;&nbsp;&nbsp;c. The total cumulative denial of parenting time exceeds **192 days** of court-ordered time;

&nbsp;

## **II. STATEMENT OF FACTS**

### A. Background

### B. The 229+ Day Total Cutoff

9. The ex parte order was entered without the sworn factual findings of immediate and irreparable harm required by MCR 3.207(B). No evidentiary hearing preceded the order.

### C. Pattern of 305 Documented Interference Incidents

10. The August 2025 cutoff is not an isolated event but the culmination of a documented pattern of **305 parenting time interference incidents**, including but not limited to:

     a. Refusing to produce L.D.W. for scheduled exchanges;

     b. Unilaterally canceling parenting time without legal basis;

       c. Denying holiday and birthday parenting time;

        e. Filing serial show cause motions to weaponize the court process;

       f. Coordinating with family members to manufacture evidence for ex parte orders.

(See Exhibit A — Interference Incident Log)

#### D. The Seven Show Cause Motions — Weaponization of Court Process

| #   | Status   | Outcome                                                                                                     |
|-----|----------|-------------------------------------------------------------------------------------------------------------|
| 1   | Resolved | Dismissed                                                                                                   |
| 2   | Resolved | Dismissed                                                                                                   |
| 3   | Resolved | Mooted                                                                                                      |
| 4   | Resolved | Dismissed                                                                                                   |
| 5   | Resolved | 14 days jail (Nov 15, 2024 — remote hearing, muted 3×, lost 1st house + 1st job)                            |
| 6+7 | Resolved | 45 days jail (Nov 26, 2025 — day before Thanksgiving, AppClose birthday messages, lost 2nd house + 2nd job) |

#### E. The NSPD Smoking Gun — Manufactured Evidence (NS2505044)

*(See Exhibit B — NSPD Report NS2505044)*

#### F. Felony Wiretapping — The USB Recording (MCL 750.539c)

#### G. HealthWest Evaluation — Brady Violation

20. Instead, Judge McNeill sent a **biasing letter** to the evaluator on September 9, 2025, and ordered a **second evaluation** on September 11, 2025. The second evaluation — now contaminated by the judge's communication — changed the finding to "rule-out delusional disorder."

22. Judge McNeill referred to the first (clearing) evaluation as a "*ghost evaluation*" on the record. *(See Exhibit L)*

#### **H. The PPO — "NOT SERVED" Status**

*(See Exhibit C — PPO Docket Showing "NOT SERVED" Status)*

#### **I. Poisoning Allegation — Tested NEGATIVE**

*(See Exhibit D — Negative Poisoning Test Result)*

&nbsp;&nbsp;&nbsp;&nbsp;&nbsp;a. **229+ consecutive days** with zero contact with his son;

&nbsp;&nbsp;&nbsp;&nbsp;&nbsp;b. **59 days of incarceration** from show cause proceedings;

&nbsp;&nbsp;&nbsp;&nbsp;&nbsp;c. **Loss of two (2) jobs** due to jailings;

&nbsp;&nbsp;&nbsp;&nbsp;&nbsp;d. **Loss of two (2) homes** and periods of homelessness;

&nbsp;&nbsp;&nbsp;&nbsp;&nbsp;e. Current income of **\$19.86/hour** (\$2,900/month) at Shape Corporation — significantly impacted by the foregoing disruptions;

&nbsp;&nbsp;&nbsp;&nbsp;&nbsp;f. Severe emotional distress from prolonged separation from his child.

&nbsp;&nbsp;&nbsp;

### III. LEGAL AUTHORITY

### A. MCR 3.207(C) — Emergency Motions

### B. MCL 722.27a — Parenting Time

27. MCL 722.27a(1) provides that parenting time shall be granted "to permit frequent and continuing contact with the parent" in the best interests of the child. MCL 722.27a(3) provides that if parenting time is denied, the court "**shall do 1 or more of the following**": (a) modify the parenting time order, (b) order make-up parenting time, or (c) order the parent who violated the order to pay costs and attorney fees.

28. MCL 722.27a(7) creates a presumption in favor of parenting time: "**Parenting time shall be granted in accordance with the best interests of the child.**" A denial or restriction requires findings that parenting time would endanger the child's physical, mental, or emotional health — findings that have never been made on an evidentiary record in this case.

### C. MCL 722.23 — Best Interest Factors

29. The Child Custody Act, MCL 722.23, establishes 12 factors for determining the best interests of the child. Multiple factors weigh decisively in favor of restoring parenting time:

     d. **Factor (I)** — Domestic violence: The PPO upon which restrictions are based was entered as "**NOT SERVED**" and is jurisdictionally defective;

e. **Factor (k)** — Reasonable likelihood of abuse or neglect: The poisoning allegation tested **NEGATIVE**. No credible evidence of risk exists.

**D. Vodvarka v Grasmeyer, 259 Mich App 499 (2003)**

30. Under *Vodvarka*, a party seeking modification of custody or parenting time must demonstrate either proper cause or a change of circumstances. The evidence here demonstrates a profound change of circumstances: the complete severance of the father-child relationship for 229+ days based on an ex parte order that was entered without the required evidentiary findings, predicated on a felony wiretap recording (MCL 750.539c). These circumstances demand modification to restore parenting time.

## E. Constitutional Authority

#### IV. RELIEF REQUESTED

1. **GRANTING** this Emergency Motion;

5. **APPOINTING** a Guardian Ad Litem to investigate and report on the best interests of L.D.W., including the impact of the prolonged separation on the child;

7. **ORDERING** that any future modification or suspension of parenting time may only occur after an evidentiary hearing with proper notice, consistent with MCR 3.207(B) and due

process requirements;

8. **GRANTING** such other and further relief as this Court deems just and equitable.

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**PROPOSED ORDER**

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**FAMILY DIVISION**

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**Hon. Jenny L. McNeill**

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**ORDER RESTORING PARENTING TIME AND FOR MAKEUP PARENTING TIME**

At a session of said Court, held in the Courthouse in the City of Muskegon, County of Muskegon, State of Michigan, on the \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_\_\_.

**PRESENT: HON. \_\_\_\_\_, Circuit Court Judge**

**IT IS HEREBY ORDERED:**



20\_\_\_\_.

Date: \_\_\_\_\_

of litigation.

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Andrew J. Pigors

1977 Whitehall Road, Lot 17

North Muskegon, MI 49445

Telephone: (231) 903-5690

Email: andrewjpigors@gmail.com

Subscribed and sworn to before me this \_\_\_\_\_ day of \_\_\_\_\_, 20\_\_.

&nbsp;

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Notary Public, State of Michigan

County of Muskegon

My Commission Expires: \_\_\_\_\_

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## **CERTIFICATE OF SERVICE**

I hereby certify that on \_\_\_\_\_, 20\_\_, I served a true and correct copy of this Emergency Motion to Restore Parenting Time and for Makeup Parenting Time, Proposed Order, and all Exhibits upon:

**Emily A. Watson**

2160 Garland Drive  
Norton Shores, MI 49441

**by the following method(s):**

- First-class U.S. Mail, postage prepaid
- Personal delivery
- Email

&nbsp;

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Andrew J. Pigors, *In Propria Persona*  
1977 Whitehall Road, Lot 17  
North Muskegon, MI 49445  
(231) 903-5690  
andrewjpigors@gmail.com

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**EXHIBIT INDEX**

| Exhibit | Description                                                                    |
|---------|--------------------------------------------------------------------------------|
| A       | Interference Incident Log — 305 Documented Incidents                           |
| B       | NSPD Incident Report NS2505044 (Albert Watson Statement)                       |
| C       | PPO 2023-05907-PP Docket — "NOT SERVED" Status                                 |
| D       | Negative Poisoning Test Result                                                 |
| E       | Show Cause History Summary (7 Proceedings)                                     |
| F       | Employment Loss Documentation (2 Jobs, 2 Homes)                                |
| G       | Parenting Time Denial Calendar (229+ Days)                                     |
| H       | USB Recording Chain of Custody — Lori Watson Felony Wiretapping (MCL 750.539c) |

|   |                                                                      |
|---|----------------------------------------------------------------------|
| I | HealthWest Evaluation #1 — ALL ZEROS, Clearing Father (Sept 4, 2025) |
| K | Second Evaluation Routed to Judge's Secretary (Not Clerk)            |
| L | Transcript — Judge McNeill "Ghost Evaluation" Statement              |
| M | Ex Parte Order Log (24 of 55 Orders = 44% Ex Parte)                  |